

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 15, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV00290

ORTIZ v. HERNANDEZ

PLAINTIFF’S MOTION FOR LEAVE TO FILE FIRST AMENDED VERIFIED COMPLAINT

The unopposed motion is granted.

On January 23, 2026, plaintiff filed a complaint for partition against defendant Jessica Hernandez, through his former counsel. On May 12, 2026, plaintiff’s new counsel substituted into the case and 15 days later, filed this motion for leave to file a first amended complaint pursuant to Code of Civil Procedure sections 426.50 and 428.50, subdivision (c). Plaintiff asserts this amended complaint is necessary because his new counsel determined that the original complaint failed to name all interested parties, that it did not meet the elements for a cause of action for partition, and that a cause of action for breach of oral contract was needed. (Decl. of Ostoich at ¶ 3.) The motion attaches a copy of the proposed first amended complaint.

The Code of Civil Procedure 426.50, “[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.”

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The motion is granted. Plaintiff is directed to file his proposed first amended complaint within 10 days. Defendant shall file a responsive pleading within 30 days from the date the cross-complaint is filed.

No. 26CV00556

EISENBERG v. SUTTER HEALTH

**PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED
COMPLAINT**

The motion is denied without prejudice. Plaintiff failed to attach a copy of the proposed first amended complaint as required. [See, Cal. Rules of Court, rule 31324(a) "A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments."]